

HOUSE BILL 681

By Jones J

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 43, Chapter 14, relative to soil.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 43, Chapter 14, is amended by adding
the following as a new part:

43-14-401. Short title.

This part is known and may be cited as the "Healthy Soil Act."

43-14-402. Part definitions.

As used in this part:

(1) "Champion" means a land manager that is declared a soil health
champion due to the land manager's excellence in applying and promoting soil
health principles, as modeled by the Soil Health Champion Program of the
National Association of Conservation Districts;

(2) "Commission" means the Tennessee soil and water conservation
commission created in § 43-14-203;

(3) "Department" means the department of agriculture;

(4) "District" means a soil and water conservation district created
pursuant to the Soil and Water Conservation Districts Law, compiled in part 2 of
this chapter;

(5) "Eligible entity" means a local governmental entity with proven land
management capacity to support healthy soil;

(6) "Healthy soil" means soil that enhances its continuing capacity to function as a biological system, increases its organic matter and carbon content, and improves its structure and water- and nutrient-holding capacity, resulting in net, long-term greenhouse gas benefits;

(7) "Program" means the healthy soil program created in § 43-14-403;

(8) "Soil health principle" means a principle that promotes soil health and includes:

(A) Keeping soil covered;

(B) Minimizing soil disturbance on cropland and minimizing external inputs;

(C) Maximizing biodiversity;

(D) Maintaining a living root; and

(E) Integrating animals into land management, including grazing animals, birds, beneficial insects, or keystone species, such as earthworms;

(9) "Supported method":

(A) Means a method that is based upon soil health principles and is scientifically supported to promote healthy soil; and

(B) Includes:

(i) Planting cover crops, perennials, hedgerows, native grasses and other native vegetation;

(ii) Multi-cropping;

(iii) Adopting no-till or conservation tillage;

(iv) Planned grazing with appropriate graze and recovery periods and herd effect;

- (v) Integrated crop livestock systems;
- (vi) Mulching;
- (vii) Compost application;
- (viii) Soil microbial stimulation and inoculation; and
- (ix) On-site wetland and riparian restoration;

(10) "Technical assistance":

(A) Means assistance provided to a farmer or rancher to achieve the purposes of this part; and

(B) Includes outreach, education, financial assistance, and assistance with project planning, project design, grant applications, project implementation, or project reporting; and

(11) "Technical assistance provider":

(A) Means a local, state, federal, educational, nonprofit, or nongovernmental entity with demonstrated technical expertise in designing and implementing agricultural management practices that contribute to healthy soils; and

(B) Includes a district, the United States natural resources conservation service, the United States forest service, the United States bureau of land management, and the department of environment and conservation.

43-14-403. Healthy soil program.

(a) There is a program created within the department to be known as the "healthy soil program." The department, with support and advice from the commission, shall administer the program.

(b) The purpose of the program is to promote and support farming and ranching systems and other forms of land management that increase soil organic matter, carbon content, aggregate stability, microbiology, and water retention to improve the health, yield, and profitability of the soils of this state.

(c) The program must include:

- (1) A healthy soil assessment and education program;
- (2) A healthy soil grant program; and
- (3) Other programs established by the department to effectuate this part.

(d) The department shall encourage producer, land manager, landowner, and interagency collaboration in the management of healthy soils and shall:

- (1) Work with technical assistance providers to advance soil health stewardship across private, state, and federal land jurisdictions by fostering collaboration among producers, land managers, and landowners; and
- (2) Conduct outreach to producers and land managers to promote the program and other federal, state, or local grant opportunities that support and promote healthy soils.

(e) In administering the program, the department shall support local economic growth in this state and shall:

- (1) Identify ways to increase the generation and use of compost to build healthy soils;
- (2) To the extent permitted by law, prioritize in-state sourcing of the resources needed for the program, including testing resources, compost, seeds, fencing supplies, and equipment; and
- (3) Support the emerging market for food grown in this state under management for healthy soils.

43-14-404. Administration of the healthy soil assessment and education program.

In administering the healthy soil assessment and education program, the department shall:

(1) Work through districts, technical assistance providers, or eligible entities to:

(A) Encourage farmers, ranchers, and land managers to undertake voluntary soil health measurements;

(B) Raise awareness about desirable soil health characteristics;

(C) Facilitate on-site, producer-led workshops and training sessions to promote and engender soil health stewardship; and

(D) Complete a baseline soil health assessment by testing the carbon content, water infiltration rate, microbiology, and aggregate stability of soils, in addition to monitoring soil cover or bare ground percentage;

(2) Establish a statewide network of champions to promote soil health stewardship, offer guidance to producers and land managers, and encourage teamwork between persons involved in increasing soil health;

(3) Create a program to provide ongoing training in soil health stewardship and workshop facilitation for champions, districts, and eligible entities;

(4) In collaboration with technical assistance providers, sponsor soil health workshops and training sessions at research centers and learning sites throughout this state; and

(5) Educate students and the general public about the importance of soil health stewardship.

43-14-405. Creation and administration of the healthy soil grant program.

(a)

(1) There is created in the state treasury the healthy soil grant fund, which is separate and distinct from the general fund and all other reserve funds, to be administered by the department.

(2) The fund consists of moneys appropriated by the general assembly. Funds appropriated to the fund must only be used to provide grants as described in this section.

(3) Interest accrued by the fund must remain in the fund, and unexpended funds must be retained and carried forward to be used for the same purposes.

(b) In administering the grant program, the department shall:

(1) Award grants to districts and eligible entities to provide technical assistance to producers and land managers in advancing soil health principles and implementing supported methods;

(2) Develop a user-friendly grant program application and application and reporting processes;

(3) Develop criteria for the award of grants; provided, that grants must be awarded equitably and priority may be given to districts or eligible entities serving young producers, veterans, small farms, or ranches, or for projects that benefit economically or socially disadvantaged communities; and

(4) Ensure that grant funds are only used to advance soil health and soil health stewardship.

(c) The department shall develop eligibility criteria by rule.

43-14-406. Healthy soil advisory group.

(a) There is created a healthy soil advisory group. The advisory group is administratively attached to the department.

(b)

(1) The advisory board is composed of eight (8) members and must include:

(A) One (1) individual from each grand division of this state, to be appointed by the governor;

(B) Two (2) individuals who are qualified and knowledgeable regarding soil health, including soil health specialists, producers, champions, or representatives of nongovernmental organizations, to be appointed by the commissioner of agriculture;

(C) One (1) individual from an emergent agriculture market, to be appointed by the speaker of the house of representatives;

(D) One (1) individual from a socially disadvantaged group traditionally excluded from agricultural policy-making, to be appointed by the speaker of the senate; and

(E) The commissioner of agriculture, or the commissioner's designee, as a nonvoting ex officio member.

(2) In making appointments to the advisory group, the appointing authorities shall coordinate the appointments to ensure that the advisory group membership is inclusive and reflects the diversity of this state.

(3) A vacancy on the advisory group must be filled for the unexpired term by the appointing authority and in such a manner to ensure that the requirements of this section are met.

(4)

(A) Members appointed pursuant to subdivision (b)(1)(A) are appointed for an initial term of two (2) years. Members appointed pursuant to subdivision (b)(1)(B)–(D) are appointed for an initial term of three (3) years. After the initial term, each member serves for a term of four (4) years.

(B) Each member shall hold over after the expiration of the member's term until a successor has been duly appointed and qualified.

(C) Members may be reappointed for additional terms.

(5) Members serve without compensation, but members appointed pursuant to subdivisions (b)(1)(A)–(D) may receive travel expenses in accordance with the comprehensive travel regulations promulgated by the department of finance and administration.

(c) The advisory group shall provide recommendations to the department for:

(1) Preventative measures and training to prevent future environmental degradation from development within this state, including ways that existing environmental degradation may be reversed; and

(2) Adaptation and mitigation of healthy soils to address the emergent climate crisis and effects that poor soil management and degradation have on carbon and other greenhouse gas emissions.

43-14-407. Use of funding.

Funds appropriated to the department to effectuate this part, or obtained by the department through state or federal grants, must be used for:

(1) The healthy soil grant program;

(2) The healthy soil assessment and education program;

(3) Promotion and outreach for the program and its grant and assessment and education programs;

(4) Department staffing support; and

(5) Capacity building for the districts and other eligible entities.

43-14-408. Rulemaking authority.

The department shall promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.